Grounding the Immigration Narrative in Children & Families

January 2025 Narrative Change Working Group Reference Sheet

YOUNG CENTER FOR IMMIGRANT CHILDREN'S RIGHTS

Click here to view Young Center's shared resources, including the deck shared at the January 2025 meeting & comms guidance surrounding the Flores Settlement & Laken Riley Act

TAKEAWAYS & REFLECTIONS

1. **Challenge Harmful Narratives:** It's critical to push back against the conflation of undocumented status with criminality and the othering of immigrants. These individuals are our neighbors, friends, and community members.
2. **Defend with Positive Messaging:** Given the administration's megaphone and potential executive actions, we should counter negative narratives with positive, human-centered stories.
3. **Center Storytelling as a Strategy:** Identifying and elevating impactful stories—whether through media, partnerships, or organizational channels—remains a powerful tool for shifting public perception.
4. **Embrace the Power of Collective Action:** The opposition is highly coordinated, making collaboration, coordination, and organizing across partners and organizations essential to effectively push back.

DATA ABOUT SYSTEM INVOLVEMENT

- There are over 3 million cases in the immigration court backlog
- Average wait times for kids to win legal permanent residency is typically upwards of 5 years
- Almost 1/3 of new cases in immigration court are those of children

IMMIGRATION COURTS 101

Defendants have no right to court-appointed counsel, regardless of age.

- Children will likely be ordered deported if absent at a hearing
- No public records search for case by name (only case no., which children often don't know)
- No requirement that the judge consider the best interests of the child before ordering deportation

Immigration Status has to come before Permanency.
For non-citizen youth in child welfare custody, meaningful permanency—stability and security—cannot be achieved without addressing their immigration status needs.

Connection to immigration legal counsel is a critical supportive service and necessary aspect of case planning.

HAZARD: INCREASED RISK FOR UNDOCUMENTED YOUTH & FAMILIES

Non-citizen children and families that speak out about their experiences or critically of the federal government face increased risk of an immigration enforcement action.

ETHICAL STORYTELLING FRAMEWORK

FOR CHILDREN IN CUSTODY

- As standard practice, media inquiries requesting to interview children in custody will be declined.
- In rare circumstances, CAP leadership may determine if it's in a child's best interests to have media attention on their case.
- Alternative storytelling opportunities for children in custody, including Artwork, drawings, writings, poems, essay, in-house video animation, etc.
  - Misc. storytelling projects (i.e., annual YC-author children's book, children's art exhibit, artwork to uplift for specific holidays like International Children's Day)

FOR CHILDREN RELEASED FROM CUSTODY

- Creates a structure/process for children to "opt-in" to outreach from Communications post-release (including post-repatriation) strictly for storytelling opportunities.
- Keeps the door open so children can choose for themselves the extent to which they'd like to be in touch with the Comms team.
- Respects children's right to self-determination and autonomy to be the owners of their voice and story.

ENSURING THE SAFETY OF IMMIGRANT CHILDREN IN FEDERAL CUSTODY

End use of unlicensed facilities	**Support children aging out and transitioning into adulthood**	**Advance the safety and well-being of children in the custody of Customs and Border Protection (CBP) and the Office of Refugee Resettlement (ORR)**	**Promote policies that are child-friendly and reflect children's diverse identities**

PARADIGM FOR ACCESSING YOUTH BEST INTERESTS

#1. Child's Wishes *The Child Advocate should* always advocate for the child's wishes unless there's a clear risk to the child's safety.	**#2. Child's Safety** *The Child Advocate should* always advocate for the child's safety.	**#3. Family Integrity** Child's right to be with parents, siblings, children.
#4. Liberty Child's right to be free from detention.	**#5. Development** Child's right to food, shelter, educations and medical care.	**#6. Identity** Including religion, language, gender, sexuality.